COUNTY CHARTER AMENDMENT

OF 2026

FREQUENTLY ASKED QUESTIONS

The County Charter was adopted on January 1, 1985, and serves as the law that describes the fundamental form and functions of our County government, similar to the purpose of the US Constitution. Since 1985, there was a comprehensive review in 2014, and the County of Rockland is endeavoring to, again, amend the Charter to bring its terms into line with current government practices and to update it for the circumstances that face us today.

On June 16, 2026, after notice and a public hearing, the County Legislature passed local law No. 5 of 2026, the initial legislation needed to amend the County's Charter.

Attached are Frequently Asked Questions (FAQ) on the Charter explaining the changes.

QUESTIONS AND ANSWERS

Question 1. How have the powers of the branches of government, the Executive and the Legislature, changed? (See Section C2.02)

Answer 1. When originally drafted, the Charter did not exempt any legislation from veto. However, in fairness, there are certain legislative actions that pertain only to its internal business should not be regulated by the County Executive. These subjects are described in Section C2.02 of the Charter as:

a. establishing or amending legislative rules, policies and procedures;*
b. setting a date for a public hearing;*

c. legislative grants given pursuant to state or federal authority including but not limited to New York State County Law § 224/225;
d. contracts signed by the chairperson or vice chairperson with vendors or for professional services solely on behalf of the Legislature;
e. non-binding memorializing resolutions expressing the sense of the County Legislature; or
f. resolutions authorizing litigation by the Legislature against any other entity including governmental officials;
g. the confirmation or rejection of County Executive appointments;* and
h. appointments vested solely in the Legislature by this Charter or local law;*

[* indicates a provision in the current Charter]

Just as the Legislature may not interfere with matters of Executive privilege and powers, the Executive cannot interfere with these internal matters of the County Legislature.

Q2. Why is there a Legislative Counsel position created in the Charter? (See Section C2.06)

A2. Government is complex, and acts of government officials are dependent upon interpretations of law. Each branch of government has its own priorities and interests. For the County Legislature to have the capacity to prepare legislation independent of, as well as in cooperation with, the Executive Branch, the County Legislature requires a Counsel to the Legislature who is separate from and not dependent upon the approval and resources of the County Executive and Executive Branch, or the County Attorney, who is appointed by and supervised by the Couty Executive. Today, recognizing the importance of the function of the Legislative Counsel, the position is being added to the County Charter. In addition, the amendment ensures that the Counsel to the Legislature is a County resident.

Q3. What does it mean that the County Executive can now "refund taxes" (a/k/a/ making "tax corrections") up to $5,000? (See Section C3.02(j))

A3. Every year, the Town Tax Assessors set the property tax assessment to be paid by each property owner in each of the Towns. Sometimes, in later years, it is found that the

tax assessment is found to be incorrect for the past year or multiple years. That situation sometimes requires the tax rolls to be fixed.

State law (Real Property Tax Law § 554) requires that the County Real Property Tax Services Officer review and approve any corrections of taxes requested by the Town's Assessors and Town Supervisors. The request for corrections are submitted by the Town government and reviewed and approved by the County.

To fix the accounts is a change that requires government action. The Legislature previously allowed all minor changes, under $1,000, to be performed by the Executive branch without legislative approval. That limit is being raised to $5,000. Any change over $5,000 that is requested by a Town government must still be voted on by the Legislature at an open session.

If you have questions about why taxes might have to be corrected or refunded, please call your Town Assessor's or Supervisor's office.

Q4. How has the County's budget process changed? (See Charter Article 4)

A4. There has been a minor change in the law about the County budget process, that is not a change in practices. The individual departments of government are no longer required to give 'departmental estimates' to prepare the budget.

The provision requiring 'departmental estimates' was first enacted in the original Charter from 1985. It is copied from the Board of Supervisors form of County government which the Charter supersedes. Under the board of supervisors form, the department heads are far more independent since the board of supervisors had no full-time chief executive officer. As such, each department had to do the work of estimating budgetary needs and a report to the budget office was required.

Under the County Executive form of government that the County now has, the County Executive oversees the budget for the whole Executive Branch on a day-to-day basis, and the Department Heads are supervised by the County Executive. Under current practices, the Office of the Budget headed by the County Executive as the County's Chief

Budget Officer prepares the whole budget for the Executive Branch and works with the subordinate Department Heads to get that together. Under this Charter there is no need for formal Departmental estimates (which have not been prepared or submitted for a long time). Instead, the Office of the Budget prepares the estimates, takes input from and discusses them with the Department Heads, and a unified, full County budget proposal is prepared.

Q5. What is the Capital Projects Committee and how has it changed?

A5. Capital Projects are the major maintenance and construction of County buildings, County properties, and other assets like County cars and IT Systems. The County is allowed to borrow money (called 'bonding,' a borrowing that is a little bit like a mortgage).

This is major spending that must be reflected in the County Budget. So, the County has a committee dedicated to looking at all these big projects, discussing them, prioritizing (or de-prioritizing them).

Today, the core members of the Committee are the County Executive, the Chairperson of the Legislature, the Superintendent of Highways; and the Commissioner of Planning, or their designees. Whatever the County Planning Commissioner's duties may have been in the past, today, that Commissioner is not involved in capital projects, so the Commissioner has been removed from the regular meetings of the Committee. Today, the Commissioner of Planning is most involved in oversight of local planning and zoning decisions, not developing the County's major maintenance and building projects, or its major asset purchases.

Q6. What changes have been made to the County Contracting process? (See C4.12)

A6. Under the current Charter the County Executive has the authority to enter into every contract, but the Legislature exercises oversight. The Legislature needs to pass a

resolution to approve the County Executive entering into contracts worth more than $100,000.

This requirement was passed in 1996 and implemented in 1997. In 1997 there were about 50 contracts over $100,000. Today there are over 280 contracts over $100,000.

Legislation is a deliberate and considered process that requires time and effort to be properly considered and passed. Even a relatively routine piece of legislation can take four to six weeks to get through the process, from being proposed to being finally voted upon and returned to the County Executive to be put into effect, even if there is no controversy about the contract being voted on (which accounts for about 90% of contracts).

The new Charter amendment allows for a small committee to regularly meet and review contracts from $100,000 to $250,000 for approval without the full legislative process being undertaken. This will lessen the bureaucratic paperwork needed to get the work done, freeing up resources for other work, while still having a full Legislative review of larger contracts.

This will *not* avoid or skip any competitive or public bidding processes needed by law. All contracts will still be filed with the Legislature, just as they are today. There will just be a shorter process for smaller contracts.

Q7. Why are there multiple Undersheriffs? (See Section C13.03)

A7. By default, under New York Law, each County may have "an" (i.e. one) Undersheriff. The state gave the title 'Undersheriff' (a term used throughout history to designate the person who assumes the power of the Sheriff when a Sheriff is not available) to be the second in command, to substitute for the Sheriff. (NYS County Law § 652). In other offices this second in command position is usually called a 'Deputy.' In a Sheriff's Office, the title deputy is held by a person that serves a function like a police officer, and there are many of them. So, a different title is needed for the particular deputy who is serving as second in command.

The 1985 Charter allowed the Sheriff to employ "an" (one) Undersheriff. Due to the size and complexity of the Sheriff's operations, the Sheriff requested two "seconds-in-command" or more accurately, a "second-and-a-third-in-command," to help divide the administrative work Undersheriffs are responsible for. In the absence of the Sheriff, one is designated to be responsible for the office, and if both the Second and the primary Undersheriff are out, the secondary Undersheriff can be responsible. Budgetary appropriations limit how many Undersheriffs are permitted.

This is not a unique situation. The County Executive can designate a Deputy and alternates in order of succession to be in charge. Same with the Commissioner of Finance, the Commissioner of Personnel, the District Attorney, the County Executive and many other offices.

Q8. What has changed with respect to the qualifications of the County Attorney and Public Defender? (See C15.01 and C16.01)

A8. The only change to the Charter rules about these positions is the addition of a requirement that each is admitted to the practice of law in New York for 10 years. Previously, the Charter allowed these positions to be filled right out of law school. Now, there is a minimum limit on experience.

The same condition could not be imposed upon the District Attorney, because the rules for District Attorneys, including qualifications, are made by the State.

Q9. What has changed at the Commission on Human Rights? (See Charter Article XIX)

A9. The only change regarding Human Rights was renaming the County department the '*Department* of Human Rights,' where it was previously the 'Commission on Human Rights.'

This was done simply to be more clear. With a few exceptions, most County departments are named the 'Department of XXXXXX' or the 'Office of XXXXXX.' So, we chose to make it a 'Department.'

Inside the current Commission on Human Rights, we presently have a Commissioner of Human Rights, who is responsible for the day-to-day administration of the agency, and an advisory board called the '*Commission* on Human Rights.' Occasionally, there was confusion in speaking of the Commission on Human Rights, as to whether a person was talking about the agency (and all its parts) or just the advisory board. To make things clearer we now have a Department of Human Rights, run by a Commissioner and ~~including~~ a Commission (a board) to help the Commissioner do the job by bringing in concerns from the community and lending their expert advice and wisdom to the Commissioner.

The Charter amendment does not change the Commissioner or the Commission's responsibilities.

Q10. Will these amendments cost me additional tax dollars?

A10. No provision of the amendment requires an increase in the size of government or its spending. On the contrary, several are intended to make government more efficient, to do more with the same resources it has today.